

COUNCILORS

Ray Wickersham
Council President

Lori Steiniker

Kathy Patrick

Daniel Lopez

Mike Kee

Craig Jensen



PAYETTE CITY COUNCIL

Regular Council Meeting Agenda

February 1, 2021 7:00 PM

HONORABLE MAYOR JEFFREY T. WILLIAMS PRESIDING

**ADHERING TO THE ADVICE OF THE CDC AND SWDH REGARDING THE
COVID-19 PANDEMIC, ATTENDANCE AT THIS MEETING WILL BE
LIMITED TO 10 PEOPLE.**

However, this meeting will be streamed live through the City of Payette's
website at www.cityofpayette.com, and on the City Facebook page.

REGULAR COUNCIL – 7:00 PM

I. CALL TO ORDER

II. ROLL CALL ATTENDANCE

III. PLEDGE OF ALLEGIANCE

IV. CITIZEN COMMENTS

This time is reserved for the public to address their elected officials regarding concerns or comments they would like to provide to the City Council regarding subjects not on the agenda. At times, the City Council may seek comments/opinions regarding specific City matters during this allotted time. This is not the time slot to give formal testimony on a public hearing matter, or comment on a pending application or proposal.

V. COMMUNICATIONS

1. Recognition – U.S. Census Bureau..... 1
2. SB1021 Payette Opposition Letter..... 2
3. Friday Legislative Update..... 4

VI. APPROVAL OF MINUTES

1. 01-19-2021 Regular Council - **Action Item**..... 6

VII. APPROVAL OF PAYABLES – **Action Item**..... 12

VIII. AGENDA ITEMS

1. Ordinance #1487- AN ORDINANCE OF THE CITY OF PAYETTE, IDAHO, A MUNICIPAL CORPORATION OF THE STATE OF IDAHO; PROVIDING FOR THE AMENDMENT OF PAYETTE CITY CODE, TITLE 9 PUBLIC PEACE, MORALS & WELFARE, CHAPTER 9.56.010 UNLAWFUL ACTS BY CHANGING THE AGE TO PURCHASE OR POSSESS TOBACCO PRODUCTS OR ELECTRONIC SMOKING PRODUCTS TO TWENTY-ONE (21) AND ADDING ELECTRONIC DEVICES AND PRODUCTS IN CODE; PROVIDING A

All meetings of the City Council are held in Council Chambers at Payette City Hall, 700 Center Avenue
Any person needing special accommodations to participate in the above noticed meeting should contact the City
at least 5 days before the meeting at 642-6024.

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PENALTY FOR VIOLATIONS; AND PROVIDING SEVERABILITY, CODIFICATION,
PUBLICATION BY SUMMARY, AND ESTABLISHING EFFECTIVE DATE.

- ~ 2nd Reading – **Action Item**..... 15
2. Urban Renewal Appointment – Gretchen Couch – **Action Item**..... 16
3. Consider Approval of Professional Services Contract to Update Strategic Plan – **Action Item**..... 18
4. Resolution #2021-02 – Amending Resolution #2021-01 – Declare a Fair & Reasonable Value for City Owned Property Known as the “Brickyard” – **Action Item**..... 23

IX. MAYOR’S COMMENTS

X. CITIZEN’S COMMENTS

(Limited to 5 minutes per person, at the discretion of the Mayor)

XI. ADJOURNMENT – Action Item

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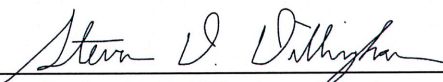
United States®
Census
2020

*Thank
you*

THE U.S. CENSUS BUREAU HEREBY RECOGNIZES

City of Payette

as an invaluable member of the 2020 Census Community Partnership and Engagement Program. We appreciate the efforts you made in making the Partnership Program a success and helping achieve a successful 2020 Census.



Dr. Steven D. Dillingham, Director
U.S. Census Bureau



PAYETTE *Idaho*

"WHAT HOME FEELS LIKE"

January 27, 2021

Members of the Senate Committee
on Local Government and Taxation

RE: SB 1021

Dear Honorable Senate Committee Members:

On behalf of the Citizens of Payette, we strongly urge you to vote against SB 1021.

Property tax systems are established by state legislation, yet the overwhelming majority of property tax revenue supports local government. Setting the proposed limits in SB 1021 thus represents a restriction by one level of government, the state, on the funds available to another, local jurisdictions.

We understand that Idaho has long considered a property tax limit modeled on California's Proposition 13, and dramatic increases in property values have reignited debate on assessment/tax limits. But we implore you, do we really want to be akin to California?

The time has come to put a stop to the proposed harsh limits in SB 1021, which will put severe pressure over time on local governments' ability to deliver the services that their residents expect and need, from schools and police and fire protection to city parks and affordable housing initiatives. Local jurisdictions will be forced to increase fees for services such as sewerage, trash pick-up, community college classes, and participation in school athletics or other extracurricular activities. Like sales taxes, fees typically fall hardest on those with the least ability to pay.

Not only will local jurisdictions be forced to cut services and increase fees, but this bill will also severely hamstring our ability to foster economic development and future growth. The best tax policy for our local jurisdictions seeking to grow our economies are those that offer long-term certainty to businesses and individuals and designed with the principles of efficiency, simplicity, and equity in mind. Smart tax policies, which are not based on political whim such as SB 1021, also have the best chance of promoting fairness across the board.

The limits proposed in SB 1021, are a deeply flawed means to counter rising property taxes. They are offered in hope of reducing tax bills and slowing the shift in tax burdens to residential property, but in fact they can result in higher taxes for the very homeowners they are intended to assist and can cause unpredictable new shifts in tax liabilities. Implementing the tax limits in SB 1021 will impose widely differing tax obligations on owners of identical properties, reduce economic growth by distorting taxpayer decision making, and greatly reduce the transparency and accountability of the property tax system as a whole.

Again, we respectfully urge you to keep Idaho prosperous and vote against SB 1021. We do not want to be another California!

Sincerely,
CITY OF PAYETTE



Jeffrey T. Williams
Payette's Mayor



Friday Legislative Update

January 22, 2021

This week has been incredibly busy from the perspective of AIC staff having meetings, reviewing and analyzing bills and working cooperatively with other local government association partners to advocate before the Legislature.

Property Tax Cap: Senate Bill 1021

This week saw the introduction of the property tax cap legislation that is sponsored by members of the legislative Property Tax Working Group. [Senate Bill 1021](#) would have a terrible impact on Idaho's future economic growth and job creation, by forcing cities to tightly restrict residential and commercial development, which is the engine of our state's economy and a primary revenue driver for the sales and income taxes that fund state and local government. The bill is expected to be up for a hearing in the Senate Local Government & Taxation Committee on Wednesday, January 27 or Thursday, January 28 in the afternoon.

The bill would make changes to the 3% Cap law as follows:

For cities where new construction roll value constitutes less than 2% growth in the taxing district's budget, the taxing district may choose either: (A) an increase including the highest dollar levy of the previous three years, plus a growth factor for CPI that cannot exceed 3%, plus a growth factor determined by applying the prior year's levy rate to the value of new construction and annexation during the previous calendar year; or (B) the taxing district may choose a 3% increase.

For cities that are growing, the property tax budget increase may be up to a maximum of 4% annually (without voter approval for a temporary override of up to 2 years in duration with simple majority voter approval or a permanent override approved by two-thirds of voters), plus: an increase including the highest dollar levy of the previous three years, a growth factor for CPI that cannot exceed 3%, and a growth factor determined by applying the prior year's levy rate to the value of new construction and annexation during the previous calendar year, plus any forgone that the city chooses to capture.

The legislation is based on the disproved idea that local government property tax levies, not rapidly rising residential values that are outstripping ag and commercial property values, are the policy problem that needs addressed. As the Legislature has heard numerous times, even the property tax freeze bill from last session would have still seen homeowners in rapidly growing areas paying more in taxes because their property values are increasing so much faster than other classes of property.

The Legislature knows the answer to the problem and continues to refuse to pass legislation to raise and/or index the homeowner's exemption or increase relief for elderly, disabled, widows and disabled veterans through the circuit breaker.

By restricting local governments' ability to fund the services and infrastructure needed to serve growth through the new construction levy, that tax burden will be shifted to current residents. If

local governments can't fund the police, firefighters, street maintenance, and other work that results from new development, then local governments have no choice but to strictly curtail development. This will hurt the state's economy and job creation, as well as state and local revenues as significant portions of state sales and income tax revenues are derived from construction and development.

"Cities need to take a look at hitting the pause button on new development projects," said AIC Legislative Chair Mayor John Evans of Garden City, "until we have a better understanding of the impacts of this legislation. It would be irresponsible to allow development to happen that might burden our existing property taxpayers with subsidizing new growth that they can't afford to pay."

We ask city officials [to please contact their local legislators](#) as soon as possible and respectfully ask that they oppose Senate Bill 1021. Provide examples of development proposals that could be affected and the economic impact to your community. Cities also need to work closely with economic development agencies, chambers of commerce, building contractors, realtors and others to advance the message about how devastating this legislation would be to Idaho's economy. AIC has spoken with AGC, IBCA, the FOP, PFFI, Idaho Power, Simplot and many other organizations about the potential harm to development and growth and welcomes your help in these important discussions.

Reach out to Legislators to Ask them to Oppose HB 16 on Disaster Emergencies

Another bill introduced this week would give the Idaho Legislature sweeping powers to modify or end local disaster declarations made by cities and counties. [House Bill 16](#) would be an unprecedented state takeover of local disaster emergencies that are usually non-controversial and used to respond to floods, mudslides, fires and other emergency situations. [Please reach out to your legislators](#) and let them know that their locally elected city and county officials have been perfectly capable of managing these situations without the state's involvement and that the unintended consequences and potential loss of federal disaster funding is unacceptable.

POST Funding Diversion Legislation Introduced, AIC will Oppose

Legislation to divert \$800,000 from the State Liquor Account for funding the Peace Officers Standards and Training Program (POST) was introduced this week. [House Bill 30](#), would split the amount equally between the state and local governments. The AIC Board of Directors voted this week to oppose the legislation because taking local government revenue, at a time when legislators are demanding that cities provide property tax relief, will only add to the burden on city service funding. The state has a massive revenue surplus that could have easily paid for this relatively small amount from the state budget. Local governments were forced to the table to renegotiate the State Liquor Account distribution formula during the Great Recession and local governments were forced to take a lower share of future revenues as a result. AIC's lobbyists will be working this issue to let legislators know of our opposition.

**MINUTES
PAYETTE CITY COUNCIL
Regular Council Meeting
January 19, 2021**

7:00 PM – Regular Council

A regular meeting of the Payette City Council was called to order at 7:00 PM by Mayor Williams in the Council Chambers of Payette City Hall, 700 Center Avenue.

ROLL CALL

Members Present: Mayor Williams, Mike Kee, Daniel Lopez, Ray Wickersham, Lori Steiniker, and Kathy Patrick

Members Absent: None

Staff Present: Mary Cordova, Dan Chadwick, City Attorney (via Zoom), Mike Davis (via zoom), Clay Ritter Library Director and Sarah Skelly.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Clay Ritter.

CITIZENS COMMENTS

Wickersham thanked Steiniker for judging the Boys & Girls Club for their awards.

Patrick stated she is disappointed and dismayed that the pool is not open, we have been closed for 10 months for no reason. She stated she is offended that we as a council voted into the budget to have a pool manager and we still don't have one. She wants to see something done, she is tired of excuses and half-truths. She suggests that we start out with lap swimmers and aerobics along with contacting local high schoolers and TVCC to hire some college students.

COMMUNICATIONS

1. 2020 Annual Housing Report – SREDA
2. 2020 New Homes Stats
3. Southwestern Idaho November Employment Analysis

APPROVAL OF MINUTES

1-04-2020 Regular Council

A motion was made by Steiniker and seconded by Patrick to approve the Regular Council meeting minutes of January 4, 2021 as written with the exception. Wickersham stated that he does view a potbelly pig as a pet.

After a unanimous voice vote by the Council, the motion CARRIED.

APPROVAL OF PAYABLES

A motion was made by Wickersham and seconded by Patrick to approve payables in the amount of \$263,357.90.

Lopez asked about the purchase of the 2017 Ford Explorer; what is that slotted for and where did the money come from? Williams stated that was the one we budgeted for. Lopez stated he is mainly concerned with the Staples listing with COVID next to them; what is the reason for the COVID next to them? Cordova replied with those are items we are getting refunded from the State of Idaho.

At the roll call:

Ayes: Kee, Lopez, Wickersham, Steiniker, and Patrick

Nays: None

The motion CARRIED

AGENDA ITEMS

1. Appointment of New Council Member

Mayor Williams made a recommendation to appoint Craig Jensen to the Council for the remainder of Morins term which is through the end of this year.

A motion was made by Kee and seconded by Wickersham to appoint Craig Jensen for the remainder of Morins term which will be the end of this year.

Steiniker stated she is worried about the message we are sending our citizens when we are having to increase our rates due to our sewer and water lines being in such disrepair and wonder what message we are sending our citizens by reappointing someone who was in the position when all those decisions were being made.

Wickersham stated that he was here at that time and most of that sewer/water stuff just came up. It was nothing that we were aware of until HECO did the inspection. A lot of this came from the new camera system and was new to me about how much we needed to repair. Williams stated he doesn't feel like that reflects on the Council past or current, the sewer department requested and budgeted for a camera and with that developed more lines that need repairing.

After a unanimous voice vote by the Council, the motion CARRIED.

2. Oath of Office-Craig Jensen was sworn in by Cordova.

3. Library Annual Report to Council

Library Director, Clay Ritter presented a slide show for the Payette Library FY20 Annual report to the Council.

4. Airport Hangar Proposal – Jason Anstrand

Wickersham stated the Airport Commission is very excited about the growth with this hangar. The Commission would like to have the hangar built the same direction as the other hangars versus how it is drawn on the map. This would make it easier for future hangar development.

Lopez would like some clarification on how the lease works, what are they paying the City for the airplane hangar they are building? Cordova stated this is just a concept plan but it will come back to you when we have a legal survey and the lease for the land. The money the City sees is for the tax on the hangar and then the lease of the property. Lopez asked if the way that he has it proposed going East to West, is that an improved road in front of that? Wickersham, stated yes that is actually a paved road. He will have to make access to the hangar at his cost.

A motion was made by Lopez and seconded by Wickersham to approve the modified Airport Hangar Proposal by Jason Anstrand.

After a unanimous voice vote by the Council, the motion CARRIED.

5. Montesa Subdivision Phase 2 – Final Plat & Montesa Subdivision Development Agreement

Davis, City Engineer received a revised submittal on construction plans. There are plans for a preconstruction meeting on Thursday and there are a couple changes that are to be addressed on the final plat such as some notes needing to be removed, driveway access be noted on the plat, and a small common lot that will be for storm drainage retention. He suggested if an approval is made it be subject to the December 11th 2021 letter from the City Engineer. Mayor Williams asked if this is two commercial lots on HWY 95 and thirteen or fifteen residential lots? Davis stated yes, two commercial and there are sixteen residential lots. Mayor Williams asked if the Development Agreement had been read by the City Attorney and City Engineer and if they were comfortable with what it says. All stated they are comfortable with the agreement.

A motion was made by Wickersham and seconded by Steiniker to approve Montesa Subdivision Phase 2 Final Plat and the Development Agreement contingent

upon the conditions of HECO Engineers letter of December 11, 2020 along with any other engineering requirements HECO may have.

After a unanimous voice vote by the Council, the motion CARRIED.

6. Ordinance #1487 AN ORDINANCE OF THE CITY OF PAYETTE, IDAHO, A MUNICIPAL CORPORATION OF THE STATE OF IDAHO; PROVIDING FOR THE AMENDMENT OF PAYETTE CITY CODE, TITLE 9 PUBLIC PEACE, MORALS & WELFARE, CHAPTER 9.56.010 UNLAWFUL ACTS BY CHANGE AGE TO TWENTY-ONE (21) AND ADDING ELECTRONIC DEVICES; PROVIDING A PENALTY FOR VIOLATIONS; AND PROVIDING SEVERABILITY, CODIFICATION, PUBLICATION BY SUMMARY, AND ESTABLISHING EFFECTIVE DATE - 1st Reading

A motion was made by Lopez and seconded by Patrick to read Ordinance #1487 by title only.

After a unanimous voice vote by the Council, the motion CARRIED.

Mayor Williams read Ordinance #1487 by title only.

Wickersham assumed we are doing this to follow State Code, is that the idea behind this? Wickersham asked what brought this up? Mayor Williams stated that Councilor Lopez brought this to our attention as needing fixed.

City Attorney Chadwick let the Council know that the Ordinance can be raised to the more stringent than state law to the age of 21 or even to 19 and it would be enforceable, however, State Code does not allow for the City to make the Ordinance lower than the State Law. Chief Plaza added that he would like to stay with the State Code as it adds to more confusion to the officers if we change to something other than State Code.

Lopez stated that the Federal Government passed a law saying 21 is the legal age to purchase tobacco. He as a retailer can get fined by the Federal Government if he follows the State law of 18. For him as retailer it protects the retailers in the City to change the Ordinance to 21.

Wickersham stated when you stop to think about this the entire state of Oregon and California sell marijuana when the Federal law says you can't sell marijuana. Lopez replied that the Federal government has every opportunity to fine the retailer. Wickersham asked Lopez so as a retailer do you have the right to tell someone who is 18 that you will not sell to them? Lopez stated yes, I do have the right and the majority of us (retailers in the City) do not sell to anyone under 21.

Mayor Williams asked Lopez if this is a problem that is going on or just something brought up? Lopez answered that he did not think it's a problem - just a house keeping matter. Mayor Williams asked if we want our Police to oversee this or more pertinent matters. Steiniker stated that maybe if we change the ordinance up to 21 than kids may have a harder time getting ahold of tobacco products. Lopez asked do we really need to have it in a City Ordinance if the State already has it? As Plaza stated he can enforce a State Code. The question today is do we raise the Ordinance to align with the Federal or just get rid of the Ordinance all together?

Kee stated he is always going to lean towards getting rid of ordinances we do not need. In the old days' ordinances were based on revenues; if the police wrote a ticket on the City ordinance than the City gets the revenue, if written on a State code the state gets the revenue.

Chadwick stated there are two issues going on here. Do you as a City have a problem with the sale of tobacco or vaping products to underage customers and how do you actually manage that. If you need to increase the age you certainly can. The other part has to do with if you are going to have a City Ordinance and a State Code you will want to enforce the one which generates more revenue for the City. That way you are able to fund the operations you are required to provide. Chadwick suggested to keep the ordinance on the books so that the police can cite the City Code to generate that revenue for the City.

A motion was made by Lopez and seconded by Jensen to move Ordinance #1487 to its 2nd reading.

After a unanimous voice vote by the Council, the motion CARRIED.

BOARD & COMMISSION REPORTS

1. Library Director Report – December 2020
2. Airport Commission – January 11th
3. Fire Department – December 2020
4. Engineer Report – January 2021
5. Payette County Ambulance-2020
Mayor Williams commented that the ambulance director wants to have better communication with the City. He will start turning in monthly reports to the City.
6. Treasurers Report-December 2020

MAYORS COMMENTS

There are two interviews scheduled for later this week for the position of the Recreation Director.

CITIZEN COMMENTS

Jensen asked to address the concern of the water/sewer infrastructure. The previous eight years that he was on City Council he never once questioned the budget for the water/sewer department, which is fee based. He stated he always knew our rates were good, so whatever they asked, in fact he can't remember anyone else on the Council questioning their proposed budget. The only time I questioned the budget is when we had another Council member ask why the rates were not going up again this year as it is something we always do? Jensen stated why would we raise them if the departments aren't asking for it in their budget? We don't just arbitrarily raise it because it is a new year, let's as a council not raise it if the departments do not want it. His concern was that the rates didn't need to be raised every year unless they were asked for. Jensen also stated that the one thing that would really help the City is to get the pool up and running as soon as possible.

ADJOURN

A motion was made by Kee and seconded by Patrick to adjourn.

After a unanimous voice vote by the Council, the motion CARRIED, and the Council adjourned at 8:20 pm.

Signed this 1st day of February, 2021

Mayor Jeffrey T. Williams

ATTEST:

Sarah Skelly

CITY OF PAYETTE
FEBRUARY 1, 2021

129,296.45	ET	CITY PAYROLL	129,296.45	Admin
12.25	20996	A-PLUS AWARDS	12.25	Legis
629.00	20997	ADVANCED CONTROL SYSTEMS	339.00	WWTP
	20997	ADVANCED CONTROL SYSTEMS	290.00	Water
1,304.11	20995	AMAZON	74.72	Library
	20995	AMAZON	123.00	Library
	20995	AMAZON	1,106.39	Library
124.99	20998	ARCHANGEL DEVICE LLC	124.99	Police
1,576.00	20999	BURKE ELECTRIC, INC.	873.00	Water
	20999	BURKE ELECTRIC, INC.	703.00	Water
2,487.44	20989	CAMPO & POOL	786.23	Police
	20989	CAMPO & POOL	86.28	Police
	20989	CAMPO & POOL	565.85	Street
	20989	CAMPO & POOL	203.45	Shop
	20989	CAMPO & POOL	367.00	Water
	20989	CAMPO & POOL	381.63	WWTP
	20989	CAMPO & POOL	97.00	Fire
2,796.16	21000	CORE & MAIN	991.76	Water
	21000	CORE & MAIN	1,496.40	Water
	21000	CORE & MAIN	308.00	Water
1,786.97	21001	DART'S TRUE VALUE	81.92	Admin
	21001	DART'S TRUE VALUE	1.20	Police
	21001	DART'S TRUE VALUE	17.16	WWTP
	21001	DART'S TRUE VALUE	11.58	WWTP
	21001	DART'S TRUE VALUE	219.35	Water
	21001	DART'S TRUE VALUE	645.82	Water
	21001	DART'S TRUE VALUE	809.94	Street
3,626.68	21002	DCS TECHNOLOGIES	12.00	Legis
	21002	DCS TECHNOLOGIES	37.00	Admin
	21002	DCS TECHNOLOGIES	112.50	Police
	21002	DCS TECHNOLOGIES	10.00	Police
	21002	DCS TECHNOLOGIES	35.00	Fore
	21002	DCS TECHNOLOGIES	14.00	Street
	21002	DCS TECHNOLOGIES	2.00	Shop
	21002	DCS TECHNOLOGIES	10.00	Pool
	21002	DCS TECHNOLOGIES	10.00	Water
	21002	DCS TECHNOLOGIES	9.00	WWTP
	21002	DCS TECHNOLOGIES	14.50	Library
	21002	DCS TECHNOLOGIES	22.50	Legis
	21002	DCS TECHNOLOGIES	90.00	Legis
	21002	DCS TECHNOLOGIES	552.48	Admin
	21002	DCS TECHNOLOGIES	22.50	Police
	21002	DCS TECHNOLOGIES	2,673.20	Fire
410.74	21003	FERGUSON ENTERPRISES	286.78	Admin
	21003	FERGUSON ENTERPRISES	25.38	Water
	21003	FERGUSON ENTERPRISES	98.58	Admin
708.00	21004	FRANKLIN BUILDING SUPPLY	302.10	Admin
	21004	FRANKLIN BUILDING SUPPLY	405.90	Street
35,680.82	20976	HARDIN SANITATION	29,297.31	Admin
	20976	HARDIN SANITATION	6,383.51	Admin
6,777.68	21005	HECO ENGINEERS	515.63	Water
	21005	HECO ENGINEERS	515.62	WWTP
	21005	HECO ENGINEERS	1,868.93	WWTP
	21005	HECO ENGINEERS	55.00	WWTP
	21005	HECO ENGINEERS	55.00	Water
	21005	HECO ENGINEERS	55.00	Street

CITY OF PAYETTE
FEBRUARY 1, 2021

	21005	HECO ENGINEERS	Montesa Sub	1,815.00	Admin
	21005	HECO ENGINEERS	Sunny Hill Sub	41.25	Admin
	21005	HECO ENGINEERS	Greif short plat	330.00	Admin
	21005	HECO ENGINEERS	Franklin short plat	288.75	Admin
	21005	HECO ENGINEERS	Henderson short plat	453.75	Admin
	21005	HECO ENGINEERS	Reisetter	330.00	Admin
	21005	HECO ENGINEERS	septic systems issues	206.25	WWTP
	21005	HECO ENGINEERS	general	247.50	WWTP
21.61	21006	IDAHO DEPT. OF LABOR	Smith	20.31	Pool
	21006	IDAHO DEPT. OF LABOR	Lords	1.30	Fire
2,174.05	21023	IDAHO BUILDING INSPECTOR		2,174.05	Admin
4,615.61	20990	IDAHO POWER		4,615.61	Street
23.00	20994	IDAHO TRANSPORTATION DEPT.	New Plate 2017 Ford	23.00	Police
5,605.54	21007	L.N. CURTIS	strut kit & air bag	5,605.54	Fire
2,451.66	20991	MALHEUR FEDERAL CREDIT UNION	lazer, wacker, filters & batte	357.64	Street
	20991	MALHEUR FEDERAL CREDIT UNION	filters	84.81	WWTP
	20991	MALHEUR FEDERAL CREDIT UNION	ladder	79.00	WWTP
	20991	MALHEUR FEDERAL CREDIT UNION	calendar	19.38	Admin
	20991	MALHEUR FEDERAL CREDIT UNION	batteries	19.95	Legis
	20991	MALHEUR FEDERAL CREDIT UNION	meals	20.75	WWTP
	20991	MALHEUR FEDERAL CREDIT UNION	1st aid, microphone & tool box	367.86	Police
	20991	MALHEUR FEDERAL CREDIT UNION	meals	35.67	Water
	20991	MALHEUR FEDERAL CREDIT UNION	supplies, dep slips & fittings	678.27	Water
	20991	MALHEUR FEDERAL CREDIT UNION	filters	37.78	Fire
	20991	MALHEUR FEDERAL CREDIT UNION	dash cam	122.14	Fire
	20991	MALHEUR FEDERAL CREDIT UNION	dep slips	49.99	WWTP
	20991	MALHEUR FEDERAL CREDIT UNION	zoom	40.00	Legis
	20991	MALHEUR FEDERAL CREDIT UNION	new website	48.00	Fire
	20991	MALHEUR FEDERAL CREDIT UNION	towel holder	11.67	Shop
	20991	MALHEUR FEDERAL CREDIT UNION	Korthals license	30.00	Water
	20991	MALHEUR FEDERAL CREDIT UNION	saws & light	141.95	Street
	20991	MALHEUR FEDERAL CREDIT UNION	adobe	31.79	Admin
	20991	MALHEUR FEDERAL CREDIT UNION	meals	15.01	Admin
	20991	MALHEUR FEDERAL CREDIT UNION	battery box	260.00	WWTP
4,094.11	21008	METROQUIP	camera repair	3,776.11	WWTP
	21008	METROQUIP	pressure gauges	318.00	WWTP
217.60	21009	NORCO	gloves	217.60	Fire
1,468.84	21010	ONTARIO BEARING	motors for roller	1,465.00	Street
	21010	ONTARIO BEARING	plug for roller	3.84	Street
100.00	21011	PAYETTE COUNTY PARAMEDICS	Davila blood draw	100.00	Police
5.00	21012	PAYETTE COUNTY SHERIFF	Kyro ID card	5.00	Police
538.28	21013	PAYETTE PRINTING	3000 PO's	79.24	Admin
	21013	PAYETTE PRINTING	3000 PO's	79.24	Street
	21013	PAYETTE PRINTING	3000 PO's	79.24	Water
	21013	PAYETTE PRINTING	3000 PO's	79.24	WWTP
	21013	PAYETTE PRINTING	3000 PO's	79.24	Police
	21013	PAYETTE PRINTING	3000 PO's	79.23	Fire
	21013	PAYETTE PRINTING	warning labels	62.85	Police
48.00	21014	SNAP ON TOOLS	tools	48.00	Shop
82.19	20977	SPARKLIGHT		82.19	Fire
67.50	20992	SPARKLIGHT		33.75	Street
	20992	SPARKLIGHT		33.75	Water
689.49	21015	SPECIALTY PLASTICS	plastic parts	689.49	Water
570.57	20993	STAPLES	suppliles	26.54	Street
	20993	STAPLES	printer & ink	342.66	WWTP
	20993	STAPLES	supplies	61.79	Water

CITY OF PAYETTE
FEBRUARY 1, 2021

	20993	STAPLES	credit & battery backup	73.50 Admin
	20993	STAPLES	label tape	66.08 Police
81.507.00	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	40.00 Legis
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	11.00 Exec
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	656.00 Admin
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-21	24,159.00 Police
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	788.00 Police
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	13,812.00 Fire
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	1,666.00 Shop
	21016	STATE INSURANCE FUND	1-1-21to 1-1-22	25,103.00 Street
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	2,942.00 Pool
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	6,400.00 Water
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	5,564.00 WWTP
	21016	STATE INSURANCE FUND	1-1-21 to 1-1-22	366.00 Library
45.67	21017	UNITED PARCEL SERVICE		45.67 Police
557.00	20978	US BANK	copier	557.00 Admin
90.20	21018	USA BLUE BOOK	hardness kits	90.20 Water
247.50	21019	WESTERN WINDSHIELD	P1 windshield	247.50 Police
140.00	21020	WIENHOFF DRUG TESTING	Forrey	60.00 Police
	21020	WIENHOFF DRUG TESTING	Weygandt	55.00 Street
	21020	WIENHOFF DRUG TESTING	Joyce	25.00 Library
890.00	21021	WILSON TIRE FACTORY	tires new car	613.16 Police
	21021	WILSON TIRE FACTORY	4 tires	226.84 Police
	21021	WILSON TIRE FACTORY	tube	50.00 Police
40.00	21022	ZOOM	zoom	40.00 Legis
\$ 293,507.71				

ORDINANCE NO.1487

AN ORDINANCE OF THE CITY OF PAYETTE, IDAHO, A MUNICIPAL CORPORATION OF THE STATE OF IDAHO; PROVIDING FOR THE AMENDMENT OF PAYETTE CITY CODE, TITLE 9 PUBLIC PEACE, MORALS & WELFARE, CHAPTER 9.56.010 UNLAWFUL ACTS BY CHANGE AGE TO TWENTY-ONE (21) AND ADDING ELECTRONIC DEVICES; PROVIDING A PENALTY FOR VIOLATIONS; AND PROVIDING SEVERABILITY, CODIFICATION, PUBLICATION BY SUMMARY, AND ESTABLISHING EFFECTIVE DATE.

BE IT ORDAINED BY THE PAYETTE CITY COUNCIL AS FOLLOWS:

Section 1. Title 9, PUBLIC PEACE, MORALS & WELFARE, Chapter 9.56.010 UNLAWFUL ACTS, of the Payette Municipal Code is hereby amended as follows:

9.56.010: UNLAWFUL ACTS:

A. It is unlawful for any person, firm, corporation or any agent thereof, with or without a license, to sell, give, distribute or make available, either directly or indirectly, any cigarettes, cigarette paper, snuff, chew, chewing tobacco, **electronic cigarettes, e-cigarettes, electronic cigar, electronic pipe, vape product** or any other tobacco products **as defined in Idaho Code 39-5702(13)** to any person under ~~eighteen~~ **twenty-one** (~~18-21~~) years of age.

B. It is unlawful for any person under ~~eighteen~~ **twenty-one** (~~18-21~~) years of age to purchase, receive, accept, share, possess, handle or use in any manner, any cigarettes, cigarette papers, snuff, chew, chewing tobacco or any other tobacco products, **electronic cigarettes, e-cigarettes, electronic cigar, electronic pipe, vape product** **as defined in Idaho Code 39-5702(13)** or anything purporting to be or resembling a cigarette. (Ord. 1164 § 1, 1999: prior code § 6-1-15)

Section 2. This Ordinance may be published in summary form allowed by Idaho Code.

Section 3. This Ordinance shall be in full force and effect immediately upon passage and publication as required by the laws of the State of Idaho.

Section 4. Any ordinances or resolutions which are in conflict with this Ordinance are hereby repealed, but only insofar as the conflict exists.

Section 5. If any portion of this Ordinance should be found to be unconstitutional or unenforceable for any reason, the remainder of the Ordinance shall be applied to effectuate the purposes of this Ordinance.

Section 6. Any violation of this ordinance shall be a misdemeanor.

PASSED and APPROVED by the Mayor and City Council of the City of Payette, Idaho this _____ day of _____ 2021.

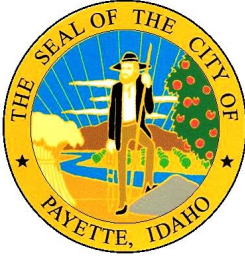
CITY OF PAYETTE, IDAHO

BY _____

Jeffrey T. Williams, Mayor

ATTEST

City Clerk



CITY OF PAYETTE, IDAHO

AGENDA STATEMENT

To: Payette City Council
From: Bobbie Black, Deputy City Clerk
Date: 1/25/2021
Re: Urban Renewal Agency

BACKGROUND & JUSTIFICATION: Randy Schwartz's term ended January 1, 2021 from the Urban Renewal Agency and he wishes not to be re-appointed. Gretchen Couch wishes to be appointed to the Agency.

FISCAL IMPACT: None

RECOMMENDATION: Recommend that City Council approves the appointment from the Mayor of Gretchen Couch on the Urban Renewal Agency with term to expire on 01-01-2026.



RECEIVED
JAN 19 2021

City of Payette

BY: Niechi

Appointment for Urban Renewal Commission Application

Name: Gretchen D. Couch
(First) (Middle) (Last)

Street: 1215 7th Ave N Payette 83661
(Street) (City) (Zip)

E-Mail: gd.couch1974@gmail.com

Are you a City Resident? yes Cell Phone: (208) [REDACTED]
Home Phone: [REDACTED]

Occupation: Business Owner Work Phone: [REDACTED]

Employment: Three Blondes One Bright Idea, LLC
(Name of Employer)

707 Center Ave Payette 83661
(Street) (City) (Zip)

Please list your qualifications for effective Board membership (Include all City Boards you serve on and any relevant experience/expertise in the area you wish to serve):

As a lifelong resident and business owner, I am invested in our community and any improvement(s) herein.

Reason for seeking appointment (Areas of interest, goals, etc.):

As the owner of a home decor boutique - I love beautifying spaces. I wish to hear and provide ideas that may assist in the beautification of our community.

Are there any reasons you may have a conflict of interest if you were appointed to a Board of Commission which you listed? None. If yes, please explain.

References (Non-family, these may be personal or professional):

Cami Whaley Fruitland [REDACTED]
(Name) (Address) (Phone)

Jodi Petroff Caldwell [REDACTED]
(Name) (Address) (Phone)

Signature: [Signature] Date: 1/19/21

AGENDA STATEMENT

To: Honorable Mayor & Members of the Payette City Council
From: M. Cordova, City Treasurer 
Date: January 28, 2021
Re: Consider Approval of Professional Services Contract to Update Strategic Plan

BACKGROUND & JUSTIFICATION:

The strategic planning document is meant to serve as a guide for the City staff to develop the annual budget for Council consideration and to provide Council with a succinct method of articulating to staff the policy direction for the City of Payette, both as a community and an organization. This strategic plan will also communicate to residents and community partners the City Council's commitment to open government, communication, collaboration, and cooperation among all who live, work, recreate, educate, or operate a business in Payette.

The City's Strategic Plan was last updated in 2016.

FISCAL IMPACT:

The proposed contract with Galena Consulting to update the City's Strategic Plan and provide the services in the attached Scope of Work is \$9,000.00. Funding will be provided through the Economic Development Fund and Professional Services in Administration.

RECOMMENDATION:

That the Council authorize the Mayor to sign the proposed contract with Galena Consulting to update the City's Strategic Plan;

OR

Determine if an alternate Scope of Work is preferred and direct staff to amend the proposal;

OR

Conduct an RFP to solicit alternate consultants;

OR

Do nothing.



STRATEGIC PLANNING PROPOSAL

CITY OF PAYETTE

Introduction

Galena Consulting is uniquely qualified to facilitate a strategic planning process for the City of Payette that clearly identifies the City's mission, goals, and objectives; aligns with the City's annual budget planning processes; and sets forth specific action steps for the realization of the City's goals and objectives.

Galena Consulting has over twenty years' experience in directing planning processes for agencies in the public sector:

- Our specific experience in strategic, operations, and capital planning for local governments throughout the West ensures Payette will receive a strategic plan that reflects the policy objectives of the elected officials, department leaders, community members and other stakeholders.
- Our specific experience conducting Payette's 2009 and 2016 strategic planning processes, and developing impact fees for the City of Payette gives us a unique perspective on the needs of the City.
- Our specific experience in work planning and performance management ensures Payette will receive a strategic plan that is actionable and measurable – clearly defining the steps that will be taken by each department to realize the City's vision over a defined period of time.
- Our specific experience in local government budget development and analysis ensures that the Payette will receive a strategic plan that is reflective of the fiscal realities of the community, and identifies the budget initiatives and/or alternatives that must be included in future adopted budgets to realize the vision and objectives of the plan.

Payette is a unique organization which supports a unique city. Rather than the application of a template, this plan will be flexible and responsive to the distinctive needs of the City.

Relevant Project Experience

Galena Consulting has twenty years of focused strategic planning and project management experience with local governments. Our client list includes:

- Boise, Idaho – Comprehensive strategic and business planning citywide, including integration into budget planning. Project management and analysis of strategic initiatives. Program analysis. Staffing and organizational structure analysis. Analysis of alternative service delivery methods.
- Boise, Idaho - Facilitation of special studies for police staffing, code enforcement, and use of public venues.
- Boise, Idaho – Project Management for establishment and operations of Harris Ranch Community Infrastructure District.
- Donnelly, Idaho – Strategic planning.
- Garden City, Idaho – Strategic planning and budget analysis. Council development.
- Idaho Council on Developmental Disabilities – Strategic planning.
- Idaho Falls, Idaho – Strategic planning.
- Logan, Utah – Strategic planning, municipal management consulting and budget analysis and development.
- Mountain Home, Idaho – Strategic planning.
- Nampa, Idaho – Strategic planning.
- Park City, Utah - Workforce development, performance evaluation, development of a culture of accountability, and implementation of effective self-managed, cross-functional teams.
- Payette, Idaho – Strategic planning and community outreach.
- Providence, Utah – Municipal management consulting, strategic planning, and budget analysis.
- Sage Community Resources; Boise, Idaho – Strategic planning for organization of ten Southwest Idaho counties providing senior services, regional planning and economic development.
- Salt Lake City Corporation – Organization and management consulting citywide including program and funding analysis, strategic and business planning, alternative service delivery analysis, program fee analysis, policy assessment and development, and performance management system development.
- State of Idaho Department of Health and Welfare, Division of Health – Strategic planning.
- South Ogden, Utah – Strategic planning.
- Sustainable Futures; Boise, Idaho – Strategic planning.
- Treasure Valley Institute of Children’s Arts; Boise, Idaho – Strategic planning.
- U.S. Green Building Council, Idaho Chapter – Strategic planning.
- Boise Farmer’s Market/Mobile Market Program – Strategic planning.

Scope of Work

Galena Consulting (“Consultant”) welcomes the opportunity to support the City of Payette as it articulates its vision for the future of the City. This vision will build on protecting the qualities dear to the community, while determining ways to capitalize on its economic development potential in order to remain fiscally healthy and sustainable. Priorities will be set around establishing service levels that respond to citizen expectations, while balancing policies around future growth and development. The proposed scope of work is as follows:

- Project Planning - Consultant will meet with point of contact for the City of Payette to clarify project deliverables and timelines.
- Information Gathering - Staff - Consultant will interview city staff to assess the status of 2016 Strategic Plan and gather additional information about the City’s current condition to enhance the planning process. Specific attention will be spent evaluating current facilities and services, and future service delivery needs.
- Information Gathering – Elected Officials – Consultant will hold individual interviews with the Mayor and members of the City Council to assess current issues and priorities.
- Public Involvement – Consultant will engage the community in the strategic planning process through a survey of community members to determine their concerns and priorities for the City of Payette. Surveys would be conducted in an electronic format, collecting data anonymously. This survey tool could be repeated at a later date as a benchmark to determine the progress being made within the Strategic Action Plan. **Alternatively, or in addition, Consultant can conduct a community open house to gather public input.*
- Strategic Planning Work Session – Consultant will facilitate a strategic planning work session with elected officials and staff (3-4 hours) informed by the information gathering and public involvement phases of the project. This will be followed by an action planning work session with elected officials and staff (3-4 hours) to develop specific action steps necessary to achieve the desired goals and objectives set forth in the strategic planning session.
- Development of Strategic Action Plan – Based on the goals and objectives set forth in the planning sessions, Consultant will develop a Strategic Action Plan document that sets forth priorities, specific action steps, responsible departments, roles of elected officials, timelines, performance measurements, and budgetary impacts. Specific attention will be focused in the plan on methods for monitoring progress and performance to ensure achievement of the city’s strategic objectives.
- Review and Adoption of Strategic Action Plan – Consultant will facilitate the review and adoption of the strategic plan by the Mayor and City Council Members.

Galena Consulting can begin to facilitate the update of Payette’s strategic plan in February 2021. The actual timeline of the proposed scope of work will depend on the availability of elected officials and staff.

Pricing

The price for completing the identified scope of work is \$9,000 not including add-ons, optional tasks or change orders. It is an all-inclusive price that encompasses professional time and all expenses. Additions to the requested scope of work can be added by the City at any time. The hourly rate for such work would be \$150 per hour.

If the City would like to add a community open house to the public involvement task above, this additional task can be added to the contracted price for \$2,000.

Agreement for Engagement of Services

Galena Consulting has been retained by the City of Payette to perform the work outlined in the above scope. The not to exceed price for these consulting services is \$9,000. Work will be billed on a progress basis.

_____	_____
City of Payette	Galena Consulting, Inc.
_____	_____
Date	Date

Covid-19 Disclaimer

Galena Consulting will follow all State and local guidelines for curbing the spread of Covid-19. Preliminary meetings will be conducted in a virtual format unless distancing and other protective measures can be ensured for all parties.

Actual planning sessions will be held in person unless State or local guidelines prohibit doing so. The timing of these sessions may need to be adjusted around changing guidelines.

CITY OF PAYETTE, IDAHO
Resolution # 2021-02

A RESOLUTION OF THE CITY OF PAYETTE AMENDING RESOLUTION #2021-01 TO DECLARE A FAIR AND REASONABLE VALUE FOR THE SALE OF CITY OWNED PROPERTY KNOWN AS THE “BRICKYARD”.

WHEREAS, the City of Payette was duly formed and exists under and by virtue of Article XII of the Constitution of the State of Idaho and Title 50 of the Idaho Code;

WHEREAS, the City of Payette owns the real property as described on Exhibit A attached and incorporated herein and hereinafter referred to as “Real Property”, also known as the “Brickyard”.

WHEREAS, the City of Payette has the power and authority pursuant to Idaho Code Section 50-1401 to sell, exchange or convey any real property owned by the City which is underutilized or which is not used for public purposes.

WHEREAS, Chapter 14 of Title 50 Idaho Code prescribes a procedure to be followed regarding the disposition of city real property.

WHEREAS, the City Council determined a fair and reasonable purchase price for the Real Property through its intent to sell the Real Property in Resolution 2019-08.

WHEREAS, Resolution 2019-08 was approved May, 2019 declaring a value of \$55,000 for the real property and a public hearing was held on June 17th, 2019 after providing proper notice to the public. No comments were received from the public regarding the sale of the Real Property; and,

WHEREAS, the City withdrew the advertisement for the sale of real property after recognizing an easement for a water line through the property was not reserved in the legal description. After obtaining a new legal description, the local property market has changed and a minimum bid for the sale should be set higher than the minimum bid set through Resolution 2019-08.

WHEREAS, staff believes that the local real property market has further changed and in consideration of the taxpayer owned property, a minimum bid should be set higher than that approved through Resolution 2021-01.

NOW THEREFORE, BE IT RESOLVED by the Mayor and City Council of the City of Payette that:

The City Council through Resolution 2019-08 found and declared that the Real Property is no longer useful to the City and underutilized and not used for public purposes; and declared their intent to sell said Real Property by sealed bid.

A public hearing was held June 17th, 2019 where no person appeared to show cause that the Real Property should or should not be made.

The City Councils finds and declares that the market value of Parcel I has further increased since January, 2021, and hereby amends Resolution 2021-01 to set a minimum bid price of \$90,000 for the Real Property.

PASSED, APPROVED and ADOPTED this 1st day of February, 2021.

Jeffrey T. Williams, Mayor

Attest:

Mary Cordova, City Clerk/Treasurer

EXHIBIT "A"

A parcel of land being a portion of the W1/2 of the NE1/4 of Section 34, Township 9 North, Range 5 West of the Boise Meridian, Payette County, Idaho, more particularly described as follows:

COMMENCING at the NE1/16 corner of said Section 34, marked by an aluminum cap/PLS 4203, from which the CE1/16 corner of said Section 34, marked by a brass cap/RMB 878, bears South 00°24'53" West, 1305.74 feet;

Thence North 89°10'57" West, 253.35 feet to a 5/8 inch rebar/no cap marking the northwest corner of the Recorders Plat of Section 34, Book 2, Page 5, and the northwest corner of Adjusted Lot B of Record of Survey Instrument No. 387646, and also the southwest corner of Lot 14, Block 2, Uehlin's 3rd Addition to the City of Payette, Book 5, Page 6, Payette County Records;

Thence North 00°21'48" East, coincident with the west line of said Lot 14, a distance of 28.45 feet to a 5/8 inch rebar/cap PLS 10561 and the **POINT OF BEGINNING**;

Thence South 88°58'32" West, 489.96 feet to the easterly right of way line of the Lower Payette Ditch, marked by a 5/8 inch rebar/cap PLS 10561;

Thence North 10°44'21" West, coincident with said easterly right of way line, 482.15 feet to the south line of said Uehlin's 3rd Addition to the City of Payette, marked by a 5/8 inch rebar/cap PLS 10561;

Thence South 89°29'04" East, coincident with said south line of Uehlin's 3rd Addition to the City of Payette and the north line of Lot 1, Block 1 of Wayne's Addition an Amended Plat, Book 7, Page 16, Payette County Records, a distance of 695.55 feet to the northeast corner of said Lot 1, marked by a 5/8 inch rebar/cap PLS 797;

Thence coincident with the boundary line of said Lot 1, the following 4 (four) courses:

South 00°19'21" West, 129.19 feet to a 5/8 inch rebar/no cap;

South 89°21'39" East, 110.00 feet to a 5/8 inch rebar/cap PLS 797;

South 00°25'58" West, 60.00 feet to a 5/8 inch rebar/no cap;

North 89°21'39" West, 222.90 feet to the southwest corner of said Lot 1, marked by a 5/8 inch rebar/no cap;

Thence South 00°21'48" West, coincident with the west line of said Lot 14 and the west line of Lot 3, Block 1, of said Wayne's Addition an Amended Plat, a distance of 270.76 feet to the **POINT OF BEGINNING**.

The above described parcel contains 6.389 acres, more or less.

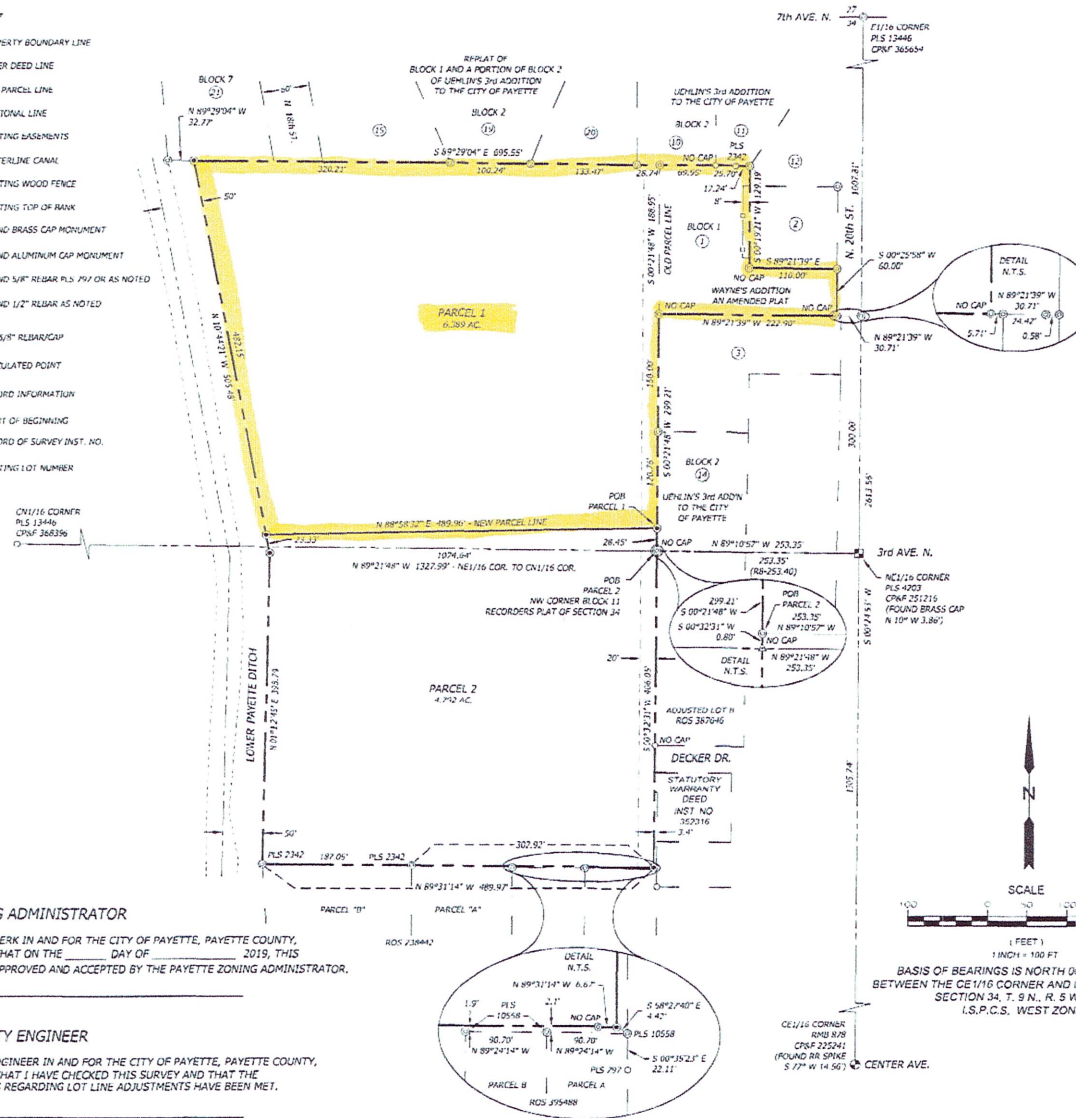
BASIS OF BEARING for this description is South 00°24'53" West between the NE1/16 corner and the CE1/16 corner of Section 34, T. 9 N., R. 5 W., B.M., Washington County, Idaho.

**RECORD OF SURVEY LOT - LINE ADJUSTMENT
FOR THE CITY OF PAYETTE**
LOCATED IN THE W1/2 OF THE NE1/4 OF SECTION 34, T. 9 N., R. 5 W., B.M.,
CITY OF PAYETTE, PAYETTE COUNTY, IDAHO
2019

NOTE:
SAWTOOTH LAND SURVEYING ASSUMES NO LIABILITY FOR
PRESENT OR FUTURE COMPLIANCE OR NONCOMPLIANCE
WITH CITY PLANNING AND ZONING ORDINANCE RESTRICTIONS
AS THEY PERTAIN TO BUILDING PERMITS AND THE ISSUANCE
THEREOF

LEGEND

- PROPERTY BOUNDARY LINE
- OTHER DEED LINE
- NEW PARCEL LINE
- SECTIONAL LINE
- EXISTING EASEMENTS
- CENTERLINE CANAL
- EXISTING WOOD FENCE
- EXISTING TOP OF BANK
- FOUND BRASS CAP MONUMENT
- FOUND ALUMINUM CAP MONUMENT
- FOUND 5/8" REBAR PLS. 757 OR AS NOTED
- FOUND 1/2" REBAR AS NOTED
- SET 5/8" REBAR/CAP
- CALCULATED POINT
- RECORD INFORMATION
- POINT OF BEGINNING
- RECORD OF SURVEY INST. NO.
- EXISTING LOT NUMBER



SURVEYOR'S NARRATIVE:

THIS SURVEY WAS PERFORMED AT THE REQUEST OF THE CITY OF PAYETTE TO ADJUST THE PROPERTY BOUNDARY AS SHOWN. THE NORTH LINE OF PARCEL 1 HELD THE FOUND MONUMENTS ALONG THE SOUTH LINE OF UELHIN'S 3RD ADDN TO THE CITY OF PAYETTE (R2) AND THE REPLAT OF BLOCK 1 AND A PORTION OF BLOCK 2 UELHIN'S 3RD ADDN TO THE CITY OF PAYETTE (R3). THE EASTERLY PORTION OF PARCEL 1 HELD THE FOUND MONUMENTS AND GEOMETRY FROM LOTS 1 AND 3, BLOCK 1 OF WAYNE'S ADDITION AN AMENDED PLAT (R4). THE EAST LINE OF PARCEL 2 HELD THE FOUND MONUMENTS FROM "ADJUSTED LOT B" OF RECORD OF SURVEY INST. NO. 387646 (R5). THE FOUND 5/8" REBAR/CAP SHOWN ON SAID RECORD OF SURVEY (R6) WAS ACCEPTED AS BEING THE NW CORNER OF BLOCK 11 OF THE RECORDERS PLAT OF SECTION 34 (R1) AND IS THE POINT OF BEGINNING FOR PARCEL 2. THE SOUTH LINE OF PARCEL 2 HELD THE FOUND MONUMENTS ALONG THE NORTH LINE OF PARCELS "A" AND "B" OF RECORD OF SURVEY INST. NO. 238442 (R5). THE WEST LINE OF PARCELS 1 AND 2 IS A 50' OFFSET TO THE EAST OF THE CENTERLINE OF THE LOWER PAYETTE DITCH. THE LOWER PAYETTE DITCH COMPANY CLAIMS A 50' RIGHT OF WAY EACH SIDE OF CENTERLINE OF THE DITCH AND IS OWNED IN FEE. AN AREA OF UNKNOWN OWNERSHIP WAS CREATED ALONG THE SOUTH LINE OF PARCEL 2 BY RECORD OF SURVEY INST. NO. 395488 (R9) AND ALONG THE EAST LINE OF PARCEL 2 BY STATUTORY WARRANTY DEED INST. NO. 352316 (R13).

REFERENCES:

- R1) RECORDERS PLAT OF SECTION 34, BOOK 2, PAGE 5
- R2) UELHIN'S 3RD ADDN TO THE CITY OF PAYETTE, BOOK 5, PAGE 6
- R3) REPLAT OF BLOCK 1 AND A PORTION OF BLOCK 2 UELHIN'S 3RD ADDN TO THE CITY OF PAYETTE, BOOK 5, PAGE 44
- R4) WAYNE'S ADDITION AN AMENDED PLAT, BOOK 7, PAGE 16
- R5) RECORD OF SURVEY INST. NO. 238442
- R6) RECORD OF SURVEY INST. NO. 387646
- R7) RECORD OF SURVEY INST. NO. 355576
- R8) RECORD OF SURVEY INST. NO. 387646
- R9) RECORD OF SURVEY INST. NO. 395488
- R10) RECORD OF SURVEY INST. NO. 389487
- R11) WARRANTY DEED INST. NO. 293633
- R12) QUITCLAIM DEED INST. NO. 293634
- R13) STATUTORY WARRANTY DEED INST. NO. 352316

CERTIFICATE OF SURVEYOR

I, KEVIN M. BORAH, DO HEREBY CERTIFY THAT I AM A PROFESSIONAL LAND SURVEYOR, LICENSED BY THE STATE OF IDAHO, AND THAT THIS MAP WAS DRAWN FROM AN ACTUAL SURVEY ON THE GROUND UNDER MY DIRECT SUPERVISION, AND ACCURATELY REPRESENTS THE POINTS MAPPED HEREON, AND IS IN CONFORMITY WITH THE STATE OF IDAHO CODE RELATING TO PLATS, SURVEYS, AND THE CORNER PERPETUATION AND FILING ACT, IDAHO CODE

KEVIN M. BORAH, P.L.S. 10561



APPROVAL OF ZONING ADMINISTRATOR

I, THE UNDERSIGNED, CITY CLERK IN AND FOR THE CITY OF PAYETTE, PAYETTE COUNTY, IDAHO, DO HEREBY CERTIFY THAT ON THE _____ DAY OF _____, 2019, THIS LOT LINE ADJUSTMENT WAS APPROVED AND ACCEPTED BY THE PAYETTE ZONING ADMINISTRATOR.

ZONING ADMINISTRATOR

CERTIFICATION OF CITY ENGINEER

I, THE UNDERSIGNED, CITY ENGINEER IN AND FOR THE CITY OF PAYETTE, PAYETTE COUNTY, IDAHO, DO HEREBY CERTIFY THAT I HAVE CHECKED THIS SURVEY AND THAT THE PAYETTE CITY REQUIREMENTS REGARDING LOT LINE ADJUSTMENTS HAVE BEEN MET.

CITY ENGINEER

DATE

BASIS OF BEARINGS IS NORTH 00°24'53" EAST
BETWEEN THE CE1/16 CORNER AND E1/16 CORNER OF
SECTION 34, T. 9 N., R. 5 W., B.M.
I.S.P.C.S. WEST ZONE

SURVEY INDEX NO. 954-34-1-0-0-00-00



SAWTOOTH
Land Surveying, LLC

2030 S. WASHINGTON AVE.
EMMETT, ID 83617
(208) 398-8104
FAX (208) 398-8105

WWW.SAWTOOTHLS.COM

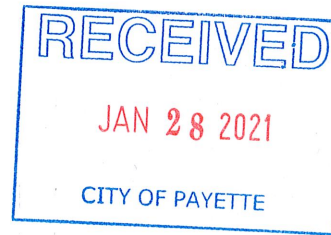
SHEET: 1 OF 1
DATE: 4/2019
DRAWN BY: CP
CHECKED BY: JPB
JOB#: 19042

DWG#: 19042-PBA

Randy L Bergquist

January 28, 2021

City of Payette
c/o City Clerk
700 Center Avenue
Payette, Idaho 83661



Dear Mayor and City Council:

The purpose of this letter is to suggest some thoughts and ideas for the proposed sale of real estate owned by the City and future sales you may make that should increase the amount the City receives.

1. DESCRIPTION OF PROPERTY. The proposed property is located at 1841 Decker Drive aka The Brickyard, Payette, Idaho. The current parcel shown on the county map is over 11 acres, but contains areas critical to the city for storm drainage and other uses. I've been told you are only going to sell 6 acres. For cost effective development of the property, please consider selling as much of the acreage as possible to make it more attractive for development. There needs to be at least two ways to enter and exit the property. So, either an easement to use Decker should be included, and/or you may want to consider including the City owned parcel that exits to the east on Uehlin Drive.

2. PRICE. The proposed minimum bid price in 2019 was \$55,000.00. I don't know if that was for the entire parcel, but if you are increasing the minimum bid price now and reducing the acreage, I would suggest an open bidding process instead of sealed bids to entice more potential buyers to bid more than the minimum. This would of course benefit the City.

3. BIDDING PROCESS: As a potential buyer I would love to be the only one and offer the minimum bid if I felt the price was very fair. In fact I did buy a lot from the City this way in 2019, but the city probably could have attracted more potential buyers and a higher price if it had not been a sealed bid. But, to offer more, someone would need to know exactly what they are buying and what others have offered before deciding whether to offer more. I would suggest this for The Brickyard property and any future property disposals as well. It would benefit the City in getting the best price and those bidding would be fairly treated as well. You can set a final bid date, then post in the office and/or online the current highest bid until the bid closes unless you have other criteria besides the highest bid.

4. DEVELOPMENT DESIRES: I would like to preserve the historical roots of the property by developing it as The Brickyard residential subdivision. A local engineering firm and builder with extensive experience has already agreed to work with me on the project to make this an attractive addition to the City of Payette. Our preliminary estimates to fully develop the property into build ready lots is significant. But, when completed it would be something we and the City of Payette should be proud of.

Sincerely,


Randy L. Bergquist